

Premvati v. State of Uttar Pradesh

High Court of Judicature at Allahabad · Division Bench · 5 February 2019 · Writ-C No. 3942 of 2019 · **Writ disposed; petitioner directed to Clause 6.8 hearing before Executive Engineer.**

HEADNOTE

A demand for electricity dues founded on alleged theft by drawing supply from the main line through a katiya was not quashed on the writ side. The Allahabad High Court held that the consumer's remedy lay under Clause 6.8 of the U.P. Electricity Supply Code, 2005, and disposed of the petition with a time-bound direction that the Executive Engineer hear and decide the representation in accordance with law. The Court expressly did not adjudicate the claim on merits.

FACTUAL SUMMARY

Premvati petitioned the Allahabad High Court to quash a demand notice dated 18 December 2018 seeking recovery of Rs. 7,02,500 as electricity dues. Dakshinanchal Vidyut Vitran Nigam Ltd. alleged that on inspection she was found drawing electricity unauthorisedly from the main line through a katiya. Counsel for the petitioner, for the Executive Engineer at Kiravali, Agra, and the Standing Counsel were heard. The Court treated the dispute as theft and left the demand unexamined on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

theft-assessment-alternate-remedy

HOLDING

A writ seeking quashing of a demand founded on alleged theft by katiya from the main line is not decided on merits; the consumer's remedy is under Clause 6.8 of the Electricity Supply Code, 2005, and the Executive Engineer must hear and decide the representation in accordance with law within the time fixed. ¶ 1

FLAG Court applied Clause 6.8 to a theft/katiya allegation; catalog distinguishes Clauses 8.1-8.2 as governing theft assessment, not 6.8.

PRINCIPLE TAGS

clause-6.8-hearing-procedure-mandatory-before-uue-conclusion A demand for electricity dues founded on alleged theft by drawing supply from the main line through a katiya was not quashed on the writ side. The Allahabad High Court held that the consumer's remedy lay under Clause 6.8 of the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DEMAND NOTICE AND WHETHER THE PETITIONER WAS USING ELECTRICITY UNAUTHORISEDLY

The Court made it clear that it had not adjudicated the petitioner's claim on merits. ¶ 1